

INTERNATIONAL TRIBUNAL FOR THE LAW OF THE SEA



YEAR 2026

10 June 2026

**CASE CONCERNING AN INQUIRY
BY THE INTERNATIONAL SEABED AUTHORITY**

(TONGA OFFSHORE MINING LTD. v. INTERNATIONAL SEABED AUTHORITY)

REQUEST FOR THE PRESCRIPTION OF PROVISIONAL MEASURES
UNDER ARTICLE 290, PARAGRAPH 1, OF THE UNITED NATIONS
CONVENTION ON THE LAW OF THE SEA

ORDER

The President of the Seabed Disputes Chamber (hereinafter “the Chamber”) of the International Tribunal for the Law of the Sea (hereinafter “the Tribunal”),

Having regard to article 290, paragraph 1, of the United Nations Convention on the Law of the Sea (hereinafter “the Convention”),

Having regard to articles 25, 27 and 40, paragraph 1, of the Statute of the Tribunal,

Having regard to articles 45, 90, paragraph 2, and 115 of the Rules of the Tribunal,

Having regard to the Application of Tonga Offshore Mining Ltd. (hereinafter “TOML”) filed with the Registry on 5 June 2026 instituting proceedings against the International Seabed Authority (hereinafter “the Authority”),

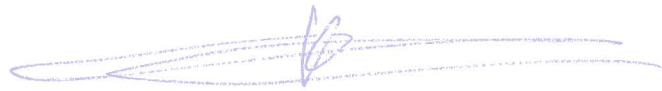
Having regard to the Request submitted by TOML Registry on 5 June 2026 for the prescription of provisional measures by the Chamber in accordance with article 290, paragraph 1, of the Convention,

Having ascertained the views of the Parties,

Fixes 2 July 2026 as the date for the opening of the oral proceedings;

Reserves the subsequent procedure for further decision.

Done in English and in French, both texts being equally authoritative, in the Free and Hanseatic City of Hamburg, this tenth day of June two thousand and twenty-six, in three copies, one of which will be placed in the archives of the Tribunal and the others transmitted to the TOML and the Authority, respectively.



David Joseph ATTARD
President of the Seabed Disputes Chamber



Ximena HINRICHS OYARCE
Registrar
